

without restriction. (RSSUMF No. 4; SSAMF 16.) Cross-defendants used the pond because they understood they had a right to do so; they never asked permission to use the pond nor did cross-complainants ever grant permission. (SSAMF No. 17.) No fence, rope, marker, or other barrier divided the pond until a rope and buoy line first appeared in 2022 and no dispute concerning the property line or this use arose until after cross-complainants purchased their second parcel to the south and cross-defendants listed their property for sale. (RSSUMF No. 4; SSAMF No. 18.) The pond forms from a stream that rises in the northeast of cross-complainants' property and flows through their property to the ravine where it collects behind the dam. (RSSUMF No. 5; SSAMF No. 10.) The property line is disputed because the cross-defendants retained licensed surveyor Clayton Guiraud who surveyed and staked the boundary in August 2020 and the survey ribbon was removed within approximately one week and cross-complainant Corey Juchau had indicated the surveyed line was not the property line. (RSSUMF No. 6; SSAMF No. 19.) The rope and buoy line does not follow the true property line. (RSSUMF No. 6, SSAMF No. 19.)

Based on their evidence, cross-defendants sufficiently raise triable issues of material fact as to the existence of a prescriptive easement and as to unclean hands. The evidence about the accumulation of the pond from a stream also supports denying this motion. As no party submits evidence as to whether the pond is navigable, it is unclear the applicability of Civil Code sections 670 and 830. Moreover, Civil Code section 830 provides that when a landowner owns water to the edge of "any other water" other than tide water or a navigable lake or stream, then "the owner takes to the middle of the lake or stream." As neither party submits any evidence as to what type of water the pond is and distance and exact measures are not included on cross-complainants' Exhibit 1, this is another reason the motion should not be granted.

Based on the foregoing, the motion for summary judgment is denied and the motion for summary adjudication is likewise denied.

7. S-CV-0053363 Dept. of Transp. v. Roth, Thomas A

Motion for Order for Possession of Parcels 38575-1, 2, 3, and 4

Plaintiff seeks a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof.

Defendants do not oppose possession 30 days after service of the order after the September 1, 2026, motion hearing or October 6, 2026, whichever is later, which is the statutory date it can be granted by the court per Code of Civil Procedure Section 1255.450(b). Defendants request that possession be granted on the condition that plaintiff fence off its takes and post no trespassing signs. Plaintiff accepts defendants' request and condition.

The motion for a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof is granted. The court finds notice was properly given to

record owner(s) pursuant to Section 1255.410, subdivision (b). Plaintiff has deposited in the State Treasury an amount that satisfies the requirements of Code of Civil Procedure sections 1255.010 – 1255.080. The court incorporates by reference the findings outlined in the proposed order for possession of parcels 38575-1, 2, 3, and 4, lodged with the court on April 10, 2026.

8. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

The motion for attorneys' fees is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32**. The court apologizes to the parties for any inconvenience.

9. S-CV-0055963 Routon, Mariha R v. Lyon dba Taco Bell

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

Plaintiff moves for approval of the parties' PAGA settlement. The court observes several issues that plaintiff should address prior to the court reaching the substance of the motion.

First, the memorandum of points and authorities refer to a declaration of Lisa Mullins (p. 14:25); however, no declaration of Lisa Mullins was filed together with plaintiff's moving papers. Without this information, there is insufficient information from the settlement administrator for the court to approve the settlement. The court observes, however, on March 6, 2026 plaintiff filed a declaration of Lisa Mullins. Plaintiff should either file the declaration plaintiff referred to in its moving papers or specify that the March 6, 2026 is the declaration plaintiff is referring to.

Second, the amount of litigation costs included in plaintiff's memorandum of points and authorities (\$5,674.59) differs from the amount counsel declares in his declaration (\$5,747.96). Plaintiff does not acknowledge the discrepancy or provide any explanation. Plaintiff should clarify the correct amount of litigations costs being sought and if the amount being sought changes the total net PAGA penalties listed in the memorandum of points and authorities on page 4, line 25, plaintiff should provide an updated calculation.

Third, plaintiff's counsel declares plaintiff submitted its PAGA notice letter to the LWDA on May 29, 2025 but does not provide a copy of that PAGA notice letter either as part of this motion or as an exhibit to the complaint. Plaintiff shall submit a copy of the PAGA notice letter.

Finally, plaintiff's counsel declares he was contemporaneously filing his declaration and settlement to the LWDA's online portal. However, no evidence is provided that plaintiff's counsel actually did so. Plaintiff shall submit updated proof showing that the settlement has been submitted to the LWDA so the court can confirm plaintiff's compliance with Labor Code section 2699(s)(2).